

**AMENDED AND RESTATED
BYLAWS OF
ACADIA ESTATES COMMUNITY OWNERS' ASSOCIATION, INC.
FORMERLY KNOWN AS WYNDHAM POINTE COMMUNITY OWNERS'
ASSOCIATION, INC.**

**Article I
NAME AND LOCATION**

The name of the corporation is ACADIA ESTATES COMMUNITY OWNERS' ASSOCIATION, INC., hereinafter referred to as the "Association" and "corporation". The principal office of the corporation shall be located at 7836 W. Irlo Bronson Highway, Kissimmee, Florida 34747, or at such other place as determined by the Board of Directors; but meetings of members and directors may be held at such places within the State of Florida, County of Osceola, or County of Orange, as may be designated by the Board of Directors.

**Article II
DEFINITIONS**

Section 1. "Association" shall mean and refer to ACADIA ESTATES COMMUNITY OWNERS' ASSOCIATION, INC., its successors and assigns.

Section 2. "Property" and "Properties" shall mean and refer to that certain real property described in the Declaration, and such additions thereto as may hereafter be brought within the jurisdiction of the Association.

Section 3. "Common Area" shall refer to those easements and areas of land, and improvements thereon, if any, that the Association owns for the common use, benefit and enjoyment of all Owners and such other areas as may be designated as Common Areas in the Declaration or on the Plat.

Section 4. "Lot" shall refer to those portions of the Property identified as individual lots on the Plat, and all buildings and improvements thereon.

Section 5. "Owner" shall mean and refer to the record owner, whether one (1) or more persons or entities, of the fee simple title to any Lot which is a part of the Properties, including contract sellers, but excluding those having such interest merely as security for the performance of an obligation.

Section 6. "Declaration" shall mean and refer to the Community Declaration of Easements, Covenants, Conditions and Restrictions applicable to the Properties as recorded in Official Records Book 1969, Page 105, Public Records of Osceola County, Florida, as amended from time to time.

Section 7. "Declarant" shall mean and refer collectively to the Declarant named in the Declaration and its successors and assigns.

Section 8. "Member" shall mean and refer to those persons entitled to membership as provided in the Articles of Incorporation.

Section 9. "Master Association" shall mean and refer to Formosa Gardens Master Property Owners' Association, Inc., a Florida not-for-profit corporation.

Section 10. "Plat" shall refer to that certain plat entitled Wyndham Pointe and recorded in Plat Book 13, Page 84, Public Records of Osceola County, Florida.

Section 11. All terms used herein which are defined in the Declaration, shall have the same meaning herein.

Article III **MEETING OF MEMBERS**

Section 1 - Annual Meeting. There shall be an annual meeting of the members of the corporation at such place as may be designated, on the third Thursday in March of each year, if not a legal holiday under the laws of the State of Florida, and if a legal holiday, then on the next succeeding business day, at 7:00 p.m., for the transaction of any and all proper business as may come before the meeting.

Section 2 - Special Meetings. Special meetings of the members shall be held whenever called by the Board of Directors or by a written request of the members who are entitled to vote one-fourth (1/4) of all votes. Business conducted at a special meeting is limited to the purposes described in the notice of the meeting.

Section 3 - Notice of Meetings. Written notice of each meeting, stating the time, place, and in general terms purpose or purposes therefor, shall be sent by mail to the last known address of all members at least ten (10) days prior to the meeting, but not more than sixty (60) days prior to the meeting.

Section 4 - Proxy. Each member may cast its vote, either in person or by limited proxy, for each Lot owned in fee simple by that particular member, solely or jointly, or by a corporation owning a Lot or Lots. Any proxy granted will automatically cease should the member granting said proxy convey his Lot. To be valid, a proxy must be dated, must state the date, time, and place of the meeting for which it was given, and must be signed by the authorized person who executed the proxy. A proxy is effective only for the specific meeting for which it was originally given, as the meeting may lawfully be adjourned and reconvened from time to time, and automatically expires 90 days after the date of the meeting for which it was originally given. A proxy is revocable at any time at the pleasure of the person who executes it. If the proxy form expressly so provides, any proxy holder may appoint, in writing, a substitute to act in his or her place. For elections to the Board of Directors, members shall vote in person at a meeting of members or by a ballot that the member personally casts, and not by proxy.

Section 5 - Quorum. At any meeting of the members a quorum shall consist of members holding twenty percent (20%) of the votes of members, for any action except as otherwise provided in the Articles of Incorporation, the Declaration, or these Bylaws. Proxies may be used to establish a quorum.

Section 6 - Vote of Members. Decisions that require a vote of the members must be made by the concurrence of at least a majority of the voting interests present, in person or by proxy, at a meeting at which a quorum has been attained.

Section 7 - Adjournment. Adjournment of an annual or special meeting to a different date, time, or place must be announced at that meeting before an adjournment is taken, or proper notice must be given of the new date, time, or place. Any business that might have been transacted on the original date of the meeting may be transacted at the adjourned meeting.

Section 8 - Voting Rights. Notwithstanding any contrary language in these Bylaws, Declarant may, in Declarant's sole discretion: Appoint and remove all members of the Board of Directors; appoint and remove all officers; otherwise control the Association; and Declarant shall otherwise retain control of the Association until the earlier of the following events:

1. Six (6) months after fee title for one hundred percent (100%) of the "Lots" has been conveyed by Declarant to an Owner other than Declarant; or
2. Such earlier date as Declarant may determine in Declarant's sole discretion.

Until one of the foregoing events occurs, Declarant will be deemed to possess no less than all of the votes that may be necessary to allow Declarant to control the outcome of any decision or vote of the Association. For purposes of this instrument, the term "Declarant" means the declarant of the Declaration and any successors in interest to such declarant. After one of the above described events occurs, Declarant shall be entitled to one vote for each Lot then owned by Declarant.

Section 9 - Actions of Association that Impair Declarant's Interests. Notwithstanding any contrary provision in the Bylaws, as long as Declarant owns any portion of the Property, Declarant shall have the right to veto any action or decision of the Board or the Association that may in Declarant's opinion impair or adversely affect Declarant's right or interests in development of the Property. Declarant shall at all times have the right to appoint one member of the Board which member shall have authority to exercise the veto power reserved for Declarant under this provision.

Article IV

OFFICERS

Section 1 - Executive Officers. The executive officers of the Association shall be President, Vice-President, Secretary and Treasurer. Subject to Sections 8 and 9 of Article III, the executive officers shall be elected annually by the Board of Directors. They shall take office immediately after the election.

Section 2 - The President. Subject to the direction of the Board of Directors, the President shall be the chief executive officer of the Association, and shall perform such other duties as from time to time may be assigned to him by the Board.

Section 3 - The Vice-President. The Vice-President shall have such power and perform such duties as may be assigned to him by the Board of Directors or the President. In case of the absence or disability of the President, the duties of the President shall be performed by the Vice-President.

Section 4 - The Secretary. The Secretary shall keep the minutes of all proceedings of the Board of Directors and of all committees and the minutes of the members' meetings in books provided for that purpose; he shall have custody of the corporate seal and such books and papers as the Board may direct, and he shall in general perform all the duties incident to the office of Secretary, subject to the control of the Board of Directors and the President; and he shall also perform such other duties as may be assigned to him by the President or by the Board.

Section 5 - Treasurer. The Treasurer shall have the custody of all the receipts, disbursements, funds and the securities of the Association and shall perform all duties incident to the office of the Treasurer, subject to the control of the Board of Directors and the President. He shall perform such other duties as may from time to time be assigned to him by the Board or the President. If required by the Board, he shall give a bond, at the expense of the Association, for the faithful discharge of his duties in such sum as the Board may require. He shall cause the annual financial statements of the Association, which are required by law or sound accounting practice, to be promptly prepared after the end of each fiscal year of the Association.

Section 6 - Subordinate Officers. Subject to Sections 8 and 9 of Article III, the President, with the approval of the Board of Directors, may appoint such other officers and agents as the Board may deem necessary, who shall have such authority and perform such duties as from time to time may be prescribed by the President or by the Board.

Section 7 - Term. Subject to Sections 8 and 9 of Article III, the officers of this Association shall be elected annually by the Board of Directors and each shall hold office for one (1) year unless they sooner resign, or are removed, or otherwise become disqualified to serve by sale of property, death, non-payment of dues or other cause.

Section 8 - Resignation and Removal. Subject to Sections 8 and 9 of Article III, any officer may be removed from office with or without cause by the Board. Any officer may resign at any time by giving written notice to the Board, the President or the Secretary. Such resignation shall take effect on the date of receipt of such notice or at any later time specified therein, and unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make it effective.

Section 9 - Vacancies. Subject to Sections 8 and 9 of Article III, a vacancy in any office may be filled by appointment by the Board. The officer appointed to such vacancy shall serve for the remainder of the term of the officer he replaces.

Article V BOARD OF DIRECTORS

Section 1 - Number of Members. Subject to Sections 8 and 9 of Article III, the business and affairs of this Association shall be managed by a Board of three (3) Directors. Directors need not be members of the Association.

Section 2 - Regular Meetings. The Board may meet at such regular times for the transaction of business as designated by the Board from time to time, at such place as may be designated from time to time.

Section 3 - Special Meetings. Special Meetings of the Board of Directors may be called by the President or by two (2) members of the Board for any time and place, provided reasonable notice of such meeting shall be given to each member of the Board before the time appointed for such meetings.

Section 4 - Quorum. The Directors shall act only as a Board, and the individual Directors shall have no power as such. A majority of the Directors shall constitute a quorum for the transaction of business. The act of a majority of Directors present at a meeting at which there is a quorum shall be the act of the Board of Directors, except as may be otherwise provided by law.

Section 5 - Meeting Chairman. At all meetings of the Board of Directors, the President, or in his absence, the Vice-President, or in the absence of both, a Chairman chosen by the Directors present, shall preside.

Section 6 - Terms of Members of the Board. The first Board of Directors named in the Articles of Incorporation shall serve until the first annual meeting of the members. Subject to Sections 8 and 9 of Article III, at the first annual meeting of members and at each annual meeting thereafter, the members of the Board of Directors shall be elected by the members of the Association for an annual term. Notwithstanding any contrary language in these Bylaws, the Declarant may appoint all members of the Board until the earlier of the following events:

1. Six (6) months after fee title for one hundred percent (100%) of the Lots has been conveyed by the Declarant to owners other than Declarant; or
2. Such earlier date as Declarant may determine in Declarant's sole discretion.

Any directors appointed by the Declarant shall serve at the pleasure of the Declarant and may be removed and substituted by the Declarant, at Declarant's sole option and discretion.

Section 7 - Annual Report. The Board of Directors, after the close of the fiscal year, shall submit to the members a report as to the condition of the Association and its property and shall submit also an account of the financial transactions of the past year.

Section 8 - Vacancies in Board. Subject to Sections 8 and 9 of Article III, whenever a vacancy in the membership of the Board shall occur, the remaining members of the Board, even

though not constituting a quorum, shall have the power, by a majority vote, to select a member of the Association to serve the unexpired term of the vacancy.

Section 9 - Compensation. No Director shall receive compensation for any service he may render to the Association. However, any Director may be reimbursed for his actual expenses incurred in the performance of his duties.

Section 10 - Action Taken Without a Meeting. The Directors shall have the right to take any action in the absence of a meeting which they could take at a meeting by obtaining the written approval of all the Directors. Any action so approved shall have the same effect as though taken at a meeting of the Directors.

Section 11 - Powers and Duties of the Board of Directors.

A. Powers. Subject to Sections 8 and 9 of Article III, the Board of Directors shall have the power to:

(1) Adopt and publish reasonable rules and regulations governing the use of the common area and facilities, and the personal conduct of the members and their guests thereon, and to establish penalties for the infraction thereof.

(2) Suspend the voting rights and right to use of the recreational facilities of a member during any period in which such member shall be in default in the payment of any assessment levied by the Association. Such rights may also be suspended after notice and hearing, for a period not to exceed sixty (60) days for infraction of published rules and regulations.

(3) Exercise for the Association all powers, duties, and authority vested in or delegated to this Association and not reserved to the membership by other provisions of these Bylaws, the Articles of Incorporation, or the Declaration.

(4) Declare the office of a member of the Board of Directors to be vacant in the event such member shall be absent from three (3) consecutive regular meetings of the Board of Directors.

(5) Employ a manager, an independent contractor, or such other employees as they deem necessary, and to prescribe their duties.

B. Duties. It shall be the duty of the Board of Directors to:

(1) Cause to be kept a complete record of all its acts and corporate affairs and to present a statement thereof to the members at the annual meeting of the members, or at any special meeting when such statement is requested in writing by one-fourth (1/4) of all votes held by members who are entitled to vote.

(2) Supervise all officers, agents and employees of the Association, and to see that their duties are properly performed.

(3) As more fully provided in the Declaration to:

(a) Fix the amount of annual assessment against each Lot at least thirty (30) days in advance of each annual assessment period; which annual assessment may be increased or decreased during each year provided that the total annual assessment per Lot for each year shall not exceed the maximum annual assessment then in effect.

(b) Send written notice of each assessment and adjustment thereto to every Owner subject thereto at least thirty (30) days in advance of each annual assessment period and the effective date of each adjustment, provided, that failure to timely send said notification shall not invalidate any such annual assessment or adjustments thereto.

(c) Foreclose the lien against any property for which assessments are not paid within thirty (30) days after due date or to bring an action at law against the owner personally obligated to pay the same.

(4) Issue, or to cause an appropriate officer to issue, upon demand by any person, a certificate setting forth whether or not any dues have been paid. A reasonable charge may be made by the Board for the issuance of these certificates. If a certificate states dues have been paid, such certificate shall be conclusive evidence of such payment.

(5) Procure and maintain adequate liability and hazard insurance on property owned by the Association.

(6) Cause all officers or employees having fiscal responsibilities to be bonded, as it may deem appropriate.

(7) Cause the common areas to be properly maintained.

Section 12 - Meetings of the Board of Directors. All meeting of the Board must be open to all members except for meetings between the Board and its attorney with respect to proposed or pending litigation where the contents of the discussion would otherwise be governed by the attorney-client privilege. Notices of all Board meetings must be posted in a conspicuous place in the community at least 48 hours in advance of a meeting, except in an emergency. In the alternative, if notice is not posted in a conspicuous place in the community, notice of each Board meeting must be mailed or delivered to each member at least seven (7) days before the meeting, except in an emergency. An assessment may not be levied at a Board meeting unless the notice of the meeting includes a statement that assessments will be considered and the nature of the assessments. Directors may not vote by proxy or by secret ballot at Board meetings, except that secret ballots may be used in the election of officers. This section also applies to the meetings of any committee or other similar body, when a final decision will be made regarding the expenditure of Association funds, and to any body vested with the power to approve or disapprove architectural decisions with respect to a specific parcel of residential property owned by a member.

Section 13 - Recording. Any Owner may tape record or videotape meetings of the Board of Directors and meetings of the members. The Board of Directors of the Association may adopt reasonable rules governing the taping of meetings of the Board and the membership.

Article VI **MEMBERSHIPS**

Section 1 - Qualifications. Only Lot owners shall be members of this Association. When two (2) or more persons are the joint owners of Lots, all such persons shall be members.

Whenever a member shall cease to own a Lot such member shall automatically be dropped from the membership of the Association.

Section 2 - Members. A member shall have no vested right, interest, or privilege of, in or to the assets, functions, affairs or franchises of the Association, or any right, interest, or privilege which may be transferable or inheritable, or which shall continue after his membership ceases, or while he is not in good standing.

Section 3 - Manner of Admission. Every person buying a Lot shall become a member of the Association upon the acquisition of his Lot.

Section 4 - Memberships Not Transferable. No membership may be sold, assigned, or transferred, voluntarily or by will or by operation of law.

Section 5 - Termination of Membership. Each membership shall cease when the member sells, assigns, transfers, or otherwise disposes of his Lot.

Section 6 - Annual Maintenance Assessment. Every member shall be required to pay an annual assessment, the amount of which shall be determined by the Board of Directors and may be changed from year to year by the Board of Directors or by the members. Annual assessments for new members shall be pro-rated from the date ownership is acquired to the last day of the year.

Article VII **LOSS OF PROPERTY**

Section 1 - Liability. The Board of Directors shall not be liable or responsible for the destruction of, loss of, or damage to the property of any member or the guest of any member, or visitor, or any other persons.

Article VIII **MAINTENANCE CHARGES**

Section 1 - Fees. Subject to Sections 8 and 9 of Article III, the Board of Directors shall have the right and power to subject the property to an annual assessment which assessment shall constitute the annual assessment provided for in the Declaration. It shall be the duty of the Board of Directors to enforce and implement the provisions of the Declaration.

Section 2 - Use of Funds. The funds raised by dues and assessments may be used for the following purposes:

(1) For lighting, improving, and maintaining the streets and dedicated right-of-way areas maintained for the general use of the owners and occupants of land included in such subdivision.

(2) For operating and maintaining any storm-water drains now or hereafter constructed in such subdivision that are not or will not be under the direct supervision of the State or County.

(3) For collecting and disposing of garbage, ashes and rubbish.

(4) For employing policemen and watchmen.

(5) For doing any other thing necessary or desirable, in the opinion of the Board of Directors, to keep the property neat and in good order and eliminate fire hazards, or which in the opinion of the Board of Directors may be of general benefit to the owners or occupants of the land included in the Properties, or additions brought within the jurisdiction of the Association.

Section 3 - Certificate of Liens. Upon request, the Association shall furnish to any owner or mortgagee, or person interested, a certificate showing the unpaid maintenance charges against any Lot or Lots.

Section 4 - Budgets. The Association shall prepare an annual budget. The budget must reflect the estimated revenues and expenses for that year and the estimated surplus or deficit as of the end of the current year. The budget must set out separately all fees or charges for recreational amenities, whether owned by the Association, the Declarant, or another person. The Association shall provide each member with a copy of the annual budget or a written notice that a copy of the budget is available upon request at no charge to the member.

Section 5 - Financial Reporting. The Association shall prepare an annual financial report within 60 days after the close of the fiscal year. The Association shall, within ten (10) business days, provide each member with a copy of the annual financial report or a written notice that a copy of the financial report is available upon request at no charge to the member. The financial report must consist of either:

(a) Financial statements presented in conformity with generally accepted accounting principles; or

(b) A financial report of actual receipts and expenditures, cash basis, which report must show:

1. The amount of receipts and expenditures by classification; and

2. The beginning and ending cash balance of the Association.

Article IX

NOTICE

Section 1 - Notice. Whenever according to these Bylaws, or the Declaration, a notice shall be required to be given to any member, it shall not be construed to mean personal notice, but such notice may be given in writing by depositing the same in a post office in Osceola or Orange County, Florida, in a postpaid, sealed wrapper, addressed to such member at his address as the same appears on the books of the Association, and at the time when such notice is mailed shall be deemed the time of the giving of such notice.

Section 2 - Waiver of Notice. Any notice required to be given by these Bylaws may be waived by the person entitled thereto.

Article X

COMMITTEES

Section 1 - Committees. The Association shall appoint a Nominating Committee, as provided in these Bylaws. In addition, the Board of Directors may appoint such other committees as deemed appropriate in carrying out the Association's purposes.

Article XI

BOOKS AND RECORDS

Section 1 - Books and Records. The books, records and papers of the Association shall at all times, during reasonable business hours, be subject to inspection by any member. The Declaration, the Articles of Incorporation and the Bylaws of the Association shall be available for inspection by any member at the principal office of the Association, where copies may be purchased at reasonable cost.

Article XII

CORPORATE SEAL

Section 1 - Corporate Seal. The Association shall have a seal in circular form having within its circumference the words: ACADIA ESTATES COMMUNITY OWNERS' ASSOCIATION, INC., SEAL 2001, CORPORATION NOT FOR PROFIT, FLORIDA.

Article XIII

ASSESSMENTS

Section 1 - Assessments. As more fully provided in the Declaration, each member is obligated to pay to the Association annual and special assessments which are secured by a continuing lien upon the property against which the assessment is made. Any assessment which is not paid within thirty (30) days after the due date, shall bear interest from the date of delinquency at the highest rate permitted by Florida law, and the Association may bring an action at law against the

Owner personally obligated to pay the same or foreclose the lien against the property, and interest, costs and reasonable attorneys' fees of any such action shall be added to the amount of such assessment. No owner may waive or otherwise escape liability for the assessments provided for herein by nonuse of the Common Area or abandonment of his Lot.

Article XIV **ELECTIONS**

Section 1 - Nomination. Subject to Sections 8 and 9 of Article III, nomination for election to the Board of Directors shall be made by a Nominating Committee. Nominations may also be made from the floor at the annual meeting. A member may nominate himself or herself as a candidate for the Board at a meeting where the election is to be held. The Nominating Committee shall consist of a Chairman, who shall be a member of the Board of Directors, and two or more members of the Association. The Nominating Committee shall be appointed by the Board of Directors prior to each annual meeting of the members, to serve from the close of such annual meeting until the close of the next annual meeting and such appointment shall be announced at each annual meeting. The Nominating Committee shall make as many nominations for election to the Board of Directors as it shall in its discretion determine, but not less than the number of vacancies that are to be filled. Such nominations shall be made from among members or non-members.

Section 2 - Election. Election to the Board of Directors shall be by secret written ballot. Subject to Sections 8 and 9 of Article III, at such election the members may cast in respect to each vacancy, as many votes as they are entitled to exercise under the provisions of the Declaration. The persons receiving the largest number of votes shall be elected. Cumulative voting is not permitted.

Article XV **AMENDMENTS**

Section 1. These Bylaws may be repealed or amended by either the Board of Directors or the members, but the Board of Directors may not amend or repeal any by-law adopted by members if the members specifically provide such by-law is not subject to amendment or repeal by the Board, at a regular or special meeting. Notwithstanding any other provisions of this document to the contrary, so long as there is a Class B membership, the Federal Housing Administration or the Veterans Administration shall have the right to veto any amendments to these Bylaws.

Section 2. In the case of any conflict between the Articles of Incorporation and these Bylaws, the Articles shall control; and in the case of any conflict between the Declaration and these Bylaws, the Declaration shall control.

Certification:

The undersigned hereby certifies this copy to be a true and accurate copy of the Bylaws of the Association as adopted by the Board of Directors as of November ____, 2002.

By: _____

George Chen, Secretary